

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Response Brief of Appellee Piedmont Booksellers Guild Filed
April 22, 2026

The district court preserved free literary programming without disabling Norvale's legitimate control of Cedar Commons. Its order rests on a developed preliminary record and a narrow factual conclusion: the City needs schedules, formats, attendance estimates, equipment details, and site information, but has not shown why paying an author should trigger a rigid forty-five-day identity-and-topic commitment and another fixed charge. The First Amendment permits neutral planning; it does not allow an administrable proxy to displace demonstrated fit.

The Guild proved every preliminary-relief factor. The challenged rules shape invitations and budgets before an author appears, making lost expression irreparable. The City retains capacity, traffic, emergency, sanitation, reservation, and material-change authority. The public receives both safe park administration and continuing literary access. The existing order should be affirmed. If this Court finds Rule 65(c) or (d) clarification necessary, it should remand only for a superseding compliant order and keep interim protection effective during that correction.

Jurisdiction, recurring controversy, and issues

This Court has jurisdiction under 28 U.S.C. § 1292(a)(1) because the City timely appeals an order granting a preliminary injunction. JA115–124, JA144. The district merits remain unresolved. The Guild does not ask this Court to enter permanent judgment, expand the appendix, or decide applications of the ordinance beyond the interim record and the six announced 2026 fairs.

The controversy remains live after the February and April dates. The same ordinance and injunction govern June 13, August 8, October 10, and December 12. JA34–38, JA58–64, JA123–124. The City's appeal seeks authority to resume the challenged administration for those events, while the Guild continues relying on the order when inviting authors. *Robinson v. National Collegiate Athletic Association*, decided April 3, confirms that a recurring-season dispute is not artificially reduced to one expired date when an operative policy continues to govern the same party.

The record and standard

The parties created an unusually focused preliminary record: verified pleadings, the ordinance and form, legislative history, a pilot enforcement summary, six declarations, site descriptions and maps, calendar and reservation evidence, dispatch abstracts, four rounds of submissions, a stipulation and alternatives chart, and a twenty-two-page hearing transcript. JA1–114. The court made findings and explained how neutral operational variables differ from payment and topic. JA115–124.

Under *Pashby v. Delia*, legal conclusions are reviewed de novo, factual findings for clear error, and the ultimate grant for abuse of discretion. The movant must clearly establish likely success, irreparable harm, a favorable equity balance, and the public interest. The City repeatedly asks this Court to choose different inferences from a balanced record. Unless a finding is clearly erroneous or rests on legal error, that request does not justify reversal.

The court's detailed explanation readily permits review under those distinct standards.

Statement of facts: expression and planning

The Guild's fairs combine book sales with free readings, discussions, and questions. They have occurred at Cedar Commons since 2019, generally with eighteen to twenty-eight sellers and four to seven compensated writers. JA1–8, JA34–48. Compensation helps regional and lesser-known authors participate; it does not make their speech less protected. Members decide whether to sponsor authors from limited event and shop budgets.

The history includes no violence. Two minor medical calls and routine loading or walkway congestion occurred. JA30–33, JA44–64. The Guild does not minimize them. Its organizer maintains emergency routes, loading windows, aisle space, and communication with City staff. A scheduled time, format, location, equipment need, and expected audience can affect that work. An author's payment or literary topic does not tell the organizer whether another officer, barrier, medic, or sanitation service is needed.

The same direct variables remain available under the injunction.

The six 2026 dates were announced before suit. JA34–38, JA58–64. Core vendors and a general footprint can be identified early, but authors often confirm within the final month because of publication schedules, regional travel, illness, caregiving, and sponsorship. The Guild can update operational facts. The ordinance nonetheless requires the complete paid roster, names, topics, and times forty-five days before each event, with no enacted deadline or materiality rule for substitutions. JA15–22, JA30–38.

The City says staff will consider amendments. That is better than a categorical refusal, but it leaves the expressive opportunity contingent during the invitation period. A replacement in the same twenty-minute slot may change only identity and subject. A new panel or amplified performance may change logistics. The Guild asks for a process tied to that distinction, not immunity from planning or an unlimited right to alter the site at the last moment.

The challenged mechanism

Each covered date requires \$240 plus \$45 for every compensated speaker. JA15–22. Six paid authors cost \$510; repeating that roster across the series costs \$3,060 before honoraria, tents, insurance, accessible seating, inventory transport, or staffing. JA34–43. Small booksellers testified that cumulative modest amounts affect participation and sponsorship, especially for writers who draw limited commercial returns.

The City attributes the charges to intake, coordination, written decisions, and schedule review. Its pilot summary concedes that time entries use broad categories and do not isolate work per speaker. JA30–33. Adding a sixth writer increases the assessment even when she replaces another in an identical slot or expects a smaller audience. The district court did not demand exact billing. It recognized that the record fails to connect the speaker increment to a demonstrated incremental expense.

That limited finding leaves ordinary event-cost recovery available on a supported record.

I. Paid literary speech is protected

Billups v. City of Charleston confirms that compensation does not remove expressive activity from First Amendment protection. A government cannot avoid constitutional scrutiny by describing a speech-related permit as an occupational or administrative rule. Here the Guild presents readings and discussions in a public park long used for community expression. Selling books around those free programs does not turn the authors' speech into mere conduct.

Norvale agrees in principle, but its proposed deference would dilute the protection. An objective trigger still burdens expression if the trigger lacks adequate relation to the interest invoked. The court did not hold that compensation is always irrelevant or that every permit for a public site is suspect. It evaluated this record, this series, and this combined deadline, disclosure, and fee structure. That is the concrete inquiry *Billups* requires.

Protected status therefore frames, rather than predetermines, the tailoring analysis.

II. Neutrality does not establish tailoring

The Guild has not accused staff of suppressing a viewpoint. The ordinance applies regardless of ideology, and early pilot decisions addressed site conditions. JA15–33. The district court accordingly treated the rule as content neutral. JA117–119. That finding eliminates one theory of heightened scrutiny; it does not prove that the chosen burdens fit significant interests.

Content-neutral restrictions still must avoid burdening substantially more protected speech than necessary. The government bears the evidentiary burden. *Billups* examines the record connecting means and ends and considers substantially less restrictive alternatives without demanding the single least restrictive rule. The City therefore cannot prevail merely by showing a legitimate interest and an administrable category. It must show why the category and burdens promote the interest with an acceptable fit.

The district court applied precisely that intermediate-scrutiny inquiry to this record, including the City's evidence and alternatives.

III. The paid-speaker trigger lacks the required connection

Norvale's operational concerns depend on audience concentration, timing, format, location, equipment, loading, transit interaction, competing reservations, and emergency access. The form can ask those questions directly. The City already collects a site plan and attendance estimate. JA15–29. Its witnesses agreed that compensation is not a crowd measure and an unpaid speaker may gather listeners. JA49–57, JA93–114.

The City reframes payment as proof of organizer control. But a schedule identifies organizer control more directly. Norvale may require the Guild to list planned presentations and operational characteristics without charging only paid authors or demanding a final subject roster before it stabilizes. An easy-to-administer proxy is not automatically narrowly tailored when the record identifies direct information and the proxy predictably burdens protected invitations.

Neutrality alone cannot substitute for the missing evidentiary connection between the trigger and the expressive burden actually imposed here.

The City argues that attendance estimates may be inaccurate and timed transitions matter. Those points support asking about presentation times and expected audiences. They do not explain the paid-status line. The same estimated crowd may attend an unpaid keynote; a compensated local poet may draw twelve listeners. The ordinance adds a fee and disclosure consequence based on the compensation fact even after direct schedule information is supplied.

The stipulated alternatives chart did not purport to enact a substitute code. JA88–92. It recorded feasible directions: presentation schedules, format and equipment fields, audience thresholds, site-specific conditions, and material-change updates. The district court used those alternatives as evidence that Norvale could address the proved risks more directly. It did not require the City to choose any single proposal or guarantee a risk-free system.

Nor did it forbid reasonable advance deadlines for those operational facts.

IV. The advance roster and topic provisions amplify the mismatch

The Guild accepts an early site filing. Its objection is to making a complete paid-speaker roster and topic list part of that deadline when author confirmation commonly occurs later. JA34–48. A short general topic is less intrusive than a synopsis, and no one claims ideological screening. Still, requiring a final expressive identity and subject at a fixed early point burdens whom the Guild may invite and when.

The amendment practice is neither binding nor bounded. Staff “may” consider a substitution, without an enacted decision deadline or standard distinguishing operational change from identity change. JA30–38. The City offered a three-business-day litigation proposal during stay proceedings, after the order was entered. JA125–130. That offer may inform a revised system; it cannot retroactively supply the ordinance's missing assurance while the Guild forms its program. The uncertainty is thus fixed in the governing process, not invented by speculation.

The City's alternatives do not provide adequate channels for the lost appearance. An unpaid invitation excludes writers unable to donate time and travel. A bookstore event differs from an established free public fair. Another site may lack the audience and accessibility of Cedar Commons. Waiting for a future date cannot recreate a release-season opportunity or a visiting author's itinerary. The First Amendment does not require total suppression before a channel is inadequate.

The Guild also cannot “plan earlier” around facts outside its control. It begins invitations months ahead, but authors' schedules evolve. JA34–43. A constitutional process may require reasonable advance operational information; it should not make every later protected appearance depend on unspecified grace. The district court permissibly found that the existing mechanism likely burdens more speech than the City's interests require.

That conclusion is provisional and remains open to a fuller merits record.

V. The fee finding is supported

Norvale may recover lawful administrative costs. The district court did not demand a minute-by-minute invoice or hold the \$240 base amount facially invalid. It focused on the escalating \$45 speaker assessment and the lack of record evidence connecting each increment to additional work. JA119–121. The pilot history is too short and its timekeeping too general to supply that connection. JA30–33.

The City's reliance on averaging cannot cure the absent evidence. A fixed schedule may average legitimate costs, but the government must identify those costs and show the charge is not a speech tax untethered to administration. No record shows that a sixth author requires another review unit, traffic post, or written decision when the overall schedule and site remain unchanged. The court's preliminary skepticism was evidence based, not hostility to all permit fees.

Norvale remains free to develop stronger cost proof during the merits proceedings.

VI. Irreparable harm is present now

The Guild's injury occurs during planning. It must decide whether to invite, sponsor, advertise, and commit funds before the event. JA34–48. A denial after an author's travel window closes or a choice not to invite because approval is uncertain cannot be repaired with damages. The loss of protected expression for a particular date is irreparable even if another fair later occurs.

No completed viewpoint denial is required. The deadline and charges apply by their own terms; the uncertain amendment process governs every late confirmation. The Guild identified six real dates and an established pattern, not a hypothetical aspiration. Although February and April have passed under the injunction, June, August, October, and December remain. The recent *Robinson* decision reinforces that recurring, short-duration opportunities should not be erased one at a time while a continuing rule controls them.

Each remaining date has an active planning period that cannot later be restored.

VII. The equities and public interest favor the order

The City's asserted injury is limited by the relief's design. It may collect and use site plans, schedules, expected attendance, formats, equipment needs, loading information, and emergency contacts. It may enforce reservation priority, capacity, traffic, sanitation, transit access, emergency lanes, and conditions tied to documented material changes. JA123–124. It may return to court if a concrete unforeseen risk arises.

The Guild faces lost speech and participation; the City faces adjustment to which proxy and fee it may use. Preventive safety does not require waiting for violence, but the injunction does not impose that requirement. It preserves direct risk regulation. The public benefits when free literary programs coexist with clear operational measures. On this record, the district court's balance was within the range of permissible judgment.

The City identifies no concrete safety measure that the order actually prevents, and it may seek modification for changed facts.

VIII. Rule 65 issues support correction, not dissolution

The Guild agrees that an injunction must give fair notice and that a court should address security expressly. The January 23 order identifies the ordinance and preserves neutral safety authority, and the memorandum makes its intent understandable. JA115–124. If this Court concludes the operative paragraph should enumerate the restrained provisions more precisely, Rule 65(d) can be satisfied by a prompt superseding order.

Likewise, the absence of an express Rule 65(c) finding does not show that Norvale suffered recoverable loss or that the Guild failed the *Winter* factors. The City proposed no bond amount and its own partial-stay alternative would suspend the speaker fee. The district court may explain why security is nominal or unnecessary, or set an amount supported by evidence. That discrete task does not justify exposing the Guild to the likely constitutional injury already found.

Pashby supplies the appropriate remedy. Corrective remand can leave warranted interim protection effective until the district court enters a superseding compliant order. That approach respects both rules: officials receive precise operative terms and a reasoned security decision, while a technical gap does not consume the event the injunction was designed to protect.

The City asks this Court to vacate first and permit a short transition only if necessary. That reverses the equitable risk. The district court has already found irreparable expressive harm and preserved neutral safety power. Keeping the restraint temporarily in place changes no operational authority the City needs for a documented hazard. Dissolving it would immediately restore the challenged roster and fee conditions before correction could occur.

IX. Scope of disposition

The Court should affirm the Guild's entitlement to preliminary relief and reject the City's request for reversal. It should make clear that the holding is record specific: no final facial judgment, no permanent injunction, no prohibition on direct presentation logistics, and no immunity from materially changed conditions. The district court remains free to develop the merits and consider lawful revisions.

If Rule 65 correction is required, the Court should remand only that component with instructions to identify restrained acts and address security promptly. The January 23 protection should remain effective until a superseding order enters. The appellate judgment and eventual mandate should state that the limited remand does not itself dissolve protection. This measured result aligns the machine-readable targets and the practical relief the record supports.

Conclusion

Norvale may protect Cedar Commons, but it must connect expressive burdens to the needs it proves. The record supports direct collection of schedules and operational details, not a special recurring charge and rigid early roster triggered by compensation. The district court applied the correct framework, made supported findings, and preserved robust neutral safety authority. Its conclusion that the Guild clearly established preliminary entitlement was not an abuse of discretion.

The Court should affirm that entitlement. Any Rule 65(c) or (d) defect should produce a limited corrective remand while the existing injunction remains effective until a superseding compliant order enters. The underlying merits can then proceed without sacrificing the remaining 2026 literary opportunities or impairing the City's response to actual event risks.

Respectfully submitted April 22, 2026, by counsel for the Piedmont Booksellers Guild. Counsel requests oral argument and certifies service and compliance with the applicable length, typeface, and privacy rules.